

Jayamma Y vs Krishna Reddy on 24 April, 2024

KABC010123972008

[C.R.P. 67]

Govt. of Karnataka

Form No.9 (Civil)
Title Sheet for
Judgment in Suits
(R.P.91)

IN THE COURT OF THE XXXVIII ADDITIONAL CITY
CIVIL JUDGE [CCH-39] AT BENGALURU CITY

Dated this the 24th Day of April 2024

PRESENT

SRI SHIVAKUMARA B. B.A.,LL.B.,
XXXVIII Additional City Civil & Sessions Judge, Bengaluru City.

ORIGINAL SUIT NO.4019/2008

Plaintiffs:

- 1.Smt.Y.Jayamma W/o late Muniyappa Reddy
(died during pendency of suit, legal
representatives are already on record)
- 2.Kum. ANASUYA, aged about 37 years, D/o late
Muniyappa Reddy.
- 3.Sri Lokesh, aged about 35 years, S/o late
Muniyappa Reddy

All are r/o No.36, 8th Main road, 4th Cross,
Papaiah Garden, BSK 3rd Stage, Bengaluru-560
085.

[by advocate Sri K.T.Dakappa]

2

O.S.No.4019/2008

VERSUS

Defendants:

- 1.MUNI KRISHNA REDDY, aged about 55 years,
S/o late Muniyappa Reddy
- 2.Smt.M. JAYAMMA, aged about 60 years, D/o

late Muniyappa Reddy.

3.Smt.LAKSHMI, aged about 58 years, D/o late
Muniyappa Reddy.

4.Sri M.VENKATESH REDDY, aged about 55
years,S/o late Muniyappa Reddy

Defendant Nos.1 to 4 are residing at No.22, 2 nd B
Main, 6th block, Jayanagar, Bengaluru

5.Smt.JAYAMMA, aged about 65 years, W/o late
Muniyappa Reddy

6.Sri SRINIVASA REDDY, aged about 42 years,
S/o late Muniyappa Reddy

7.Sri.VEERENDRA KUMAR, aged about 39 years,
S/o late Muniyappa Reddy

8.Smt.GIRIJA, D/o late Muniyappa Reddy.

9.Smt.SHYALAJA, Major in age, D/o late
Muniyappa Reddy.

Defendant Nos.5 to 9 are R/o No.22, 2 nd B Main,
6th Block Jayanagar, Bengaluru

(by advocate Sri Krishna Reddy)

3

O.S.No.4019/2008

Date of Institution of the suit 19/06/2008

Nature of suit Declaration, partition and
separate possession and
mesne profit

Date of commencement of Evidence 15/10/2015

Date on which the judgment is pronounced 24/04/2024

Duration taken for disposal	Years	Months	Days
	15	10	05

JUDGMENT

This suit is filed by the Plaintiffs for declaration, partition and separate possession and for mesne profit.

Suit schedule properties Item No.1:

All the piece and parcel of property bearing B.B.M.P. katha No.243(Old No.47, later 47/6) situated at K.R.Road, BSK, II Stage, Bengaluru measuring East to West 79+68/2 ft. and North to South 30 ft. and bounded on:

East by: Bandi Dari, later named as K.R.Road West by: Site No.47/5 North by: Site No.47/1 South by: Site No.47/6-A valued at Rs.2 Crores Item No.2:

O.S.No.4019/2008 All the piece and parcel of property No.47/6A of Yediyur village, formed in Sy.No.47, Yediyur village, Uttarahalli hobli, Bengaluru South taluk within the limits of B.B.M.P.ward No.59, present B.B.M.P. Khatha No.240, K.R.Road, Shastri Nagar, Bengaluru measuring East to West 90 ft. and North to South 30 ft. and bounded on:

East by: Bandi Dari, later named as K.R.Road
West by: Site No.47/8
North by: Item No.1 property i.e., property No.243
South by: Private property
valued at Rs.2.2 Crores

Item No.3:

All the piece and parcel of premises No.31/1(old No.18) of Yediyur village, situated at 7 th block, Jayanagar Bengaluru measuring East to West on the south 31 ft. 6 inch, on the North 38 ft. and North to South 20 ft. and totally 695 Sq.ft. With ground plus two floors and bounded on:

East by: Private property No.147
West by: Road
North by: Property No.125
South by: Private property No.17
valued at Rs.20 Crores

Item No.4:

All the piece and parcel of premises No.1(Old No.189/90), 2nd B main road, Kanakapura Main road, 6th block, Jayanagara, Bengaluru, Yediyur village, B.B.M.P. ward No.59 measuring East to West 84 ft. and North to South 35½ ft. and bounded on:

East by: 2nd Main road

O.S.No.4019/2008

West by: Private property

North by: Private property

South by: Property No.189/190/1(item No.5 property)
valued at Rs.50 lakhs

Item No.5

All the piece and parcel of premises No.1/1(Old No.189/90), PID No.59-60-1/1 situated at 2nd Main, 27th Cross, 6th block, Jayanagar, Bengaluru measuring East to West 84 feet and North to South 37.5 feet totally measuring 3150 Sq.ft with 8 Sq.ft. Building and bounded on:

East by: 2nd B main road West by: Property No.25/1 North by : Property No.22,189/190/1(item No.4 property) South by: 27th Cross Valued at Rs.60 lakhs
Item No.6:

All the piece and parcel of landed property in Sy.No.46/2 of Chikkallasandra village, Uttarahalli Hobli, Bengaluru South taluk, measuring 1 acre 34 guntas attached with 6 guntas of Kharab and assessed at Rs.2-93 and converted for residential purpose and bounded on:

East by: Private land

West by: Chikkallsandra Main road,

North by: Private land and thereafterwards
storm water drain

South by: Deccan International school
valued at Rs.50 lakhs

O.S.No.4019/2008

2. The brief facts of the Plaintiff's case are as under:

The Plaintiff No.1 is the wife and Plaintiff Nos.2 and 3 are the children of late Muniyappa Reddy. Said late Muniyappa Reddy had three wives. His first wife Smt.Pillamma died leaving behind her two sons and two daughters who are Defendant Nos.1 to 4. Subsequently, late Muniyappa Reddy married Plaintiff No.1, who gave birth to Plaintiff Nos.2 and 3 due to their wedlock. During subsistence of marriage with Plaintiff No.1, late Muniyappa Reddy married Defendant No.5 who gave birth to two sons and two daughters who are Defendant Nos.6 to 9 herein. Late.Muniyappa Reddy died in the year 1976 leaving behind him the Plaintiff Nos.1 to

3 and Defendants as his sole surviving successors and legal heirs.

It is further averred that said late Muniyappa Reddy left behind him huge immovable properties at Bengaluru. The said properties are premises bearing No.1(Old No.189/190), 2nd B Main, Yediyur, Bengaluru and also O.S.No.4019/2008 premises No.31/1, Old No.1828, 7th Cross, Jayanagar, Bengaluru as well as No.243, K.R.Road, Shastri Nagar, Bengaluru and property No.47/6A, K.R.Road, Bengaluru and also landed properties at Sy.No.46 of Chikkallasandra village, Bengaluru, which are the suit schedule properties.

It is further averred that Smt.Pillamma, the first wife of late Muniyappa Reddy died leaving behind her three sons and two daughters. The first son Rama Reddy died as bachelor. The second wife of late Muniyappa Reddy who is Plaintiff No.1 started to live in the house of late Muniyappa Reddy along with his children through his first wife for a short while, but later late Muniyappa Reddy made separate arrangement to Plaintiff No.1 and she stayed with late Muniyappa Reddy at Mohammedan block, Jayanagar, Bengaluru. Thereafter, late Muniyappa Reddy got married Defendant No.5 as his third wife.

It is also averred that the Plaintiff No.1 who is mother of Plaintiffs No.2 and 3 got purchased the property at Yediyur, now Shastri Nagar, K.R.Road, O.S.No.4019/2008 Bengaluru in her name and started living at K.R.Road property. Later late Muniyappa Reddy started to stay with the Plaintiff No.1 and thereafter she gave birth to Plaintiff Nos.2 and 3. In this way late Muniyappa Reddy used to stay with Plaintiff No.1 as well as his third wife Smt.Jayamma, who is Defendant No.5. The suit schedule properties were treated as joint family properties. After the death of late Muniyappa Reddy, the Plaintiff No.1 used to stay in the K.R.Road property along with her children.

The Plaintiffs have further averred that the Defendant No.4 who is educated and clever, in the year 2005 threatened the Plaintiffs and cleverly made them to shift to the present residence under the guise that there were claims in respect of said property by B.D.A. and he will resolve the dispute and improve the property and then handover the property to them. Believing the words of 4th Defendant, the Plaintiff shifted to the present residence. Taking similarity in the name of Plaintiff No.1 and Defendant No.5, the Defendant No.4 got executed the O.S.No.4019/2008 Gift Deed in his name from Defendant No.5, even though Defendant No.5 had no right or interest in the said property. The said act of Defendant No.4 is a clear case of cheating and impersonation, and done by the 4 th Defendant in order to deceive the Plaintiffs and Defendant Nos.5 to 9. The Defendant No.4 without getting the re-conveyance from B.D.A., got created the Gift Deed from wrongful person in his name, which is not binding on the Plaintiffs.

It is further averred that the suit schedule properties are undivided joint family properties of Plaintiffs and Defendants, who constitute undivided Hindu joint family. The Plaintiffs are in joint and constructive possession of the suit schedule properties having inherited the same from late Muniyappa Reddy along with Defendants. Hence, the Plaintiffs and Defendants being the members of undivided Hindu joint family are coparceners of properties left behind by late Muniyappa Reddy.

O.S.No.4019/2008 The Plaintiffs further averred that because of the ill- advise and crooked nature of the 4th Defendant, the Plaintiffs are deprived of their legitimate share in the suit schedule properties. In spite of repeated requests, the 4 th Defendant went on promising that he would make necessary arrangement for partition and till then they must wait as there was dispute between the Defendants and B.D.A. as well as third parties. Believing the words of 4th Defendant, the Plaintiffs waited all along, but recently came to know that the 4th Defendant has got transferred all the properties to his name. The suit schedule properties are yielding good income. The Defendant No.1 who is kartha of the joint family, is misusing the funds of the joint family for his personal gain. The Plaintiffs are in joint and constructive possession of the suit schedule properties. Having no other option, the Plaintiffs have filed this suit for partition.

The cause of action for the suit arose in the month of May 2008 when the 4th Defendant refused to effect partition the suit schedule properties.

O.S.No.4019/2008

3. After service of suit summons, the 1st Defendant appeared through his counsel and filed written statement contending that his name is wrongly shown as Krishna Reddy, but his correct name is Muni Krishna Reddy and his address shown in the cause title of the plaint is also not correct.

It is further contended by the 1st Defendant that the Plaintiff No.1 is not the legally wedded wife of late Muniyappa Reddy, as such Plaintiff Nos.2 and 3 are not the legitimate children of late Muniyappa Reddy.

It is admitted by Defendant No.1 that Smt.Pillamma died leaving behind her sons and daughters as stated in the plaint, but it is false that after death of Pillamma, late Muniyappa Reddy got married the 1st Plaintiff. It is admitted that late Muniyappa Reddy got married Defendant No.5, and Defendant Nos.6 to 9 are the children of Defendant No.5 and late Muniyappa Reddy. It is admitted that late Muniyappa Reddy died in the year 1976 leaving behind huge immovable properties i.e., suit schedule properties.

O.S.No.4019/2008 It is denied that after the death of Pillamma, late Muniyappa Reddy got married 1st Plaintiff and started living along with children of Pillamma in his house and later he made separate arrangement to the 1 st Plaintiff and they stayed at Mohammedan block, Jayanagar, Bengaluru and thereafter late Muniyappa Reddy got married Defendant No.5. It is denied by the Defendant No.1 that the 1st Plaintiff got purchased the property at Yediyur, but it is true that the Plaintiffs were residing in a house at Yediyur, K.R.Road, Bengaluru.

It is further contended by the 1st Defendant that after the death of first wife of late Muniyappa Reddy, Smt.Pillamma who is his mother, his father late Muniyappa Reddy developed relationship with the 1 st Plaintiff and though his father has not married her, he used to say that he got married 1st Plaintiff.

It is further contended that his father late Muniyappa Reddy purchased item No.1 of the suit schedule properties at K.R.Road, Bengaluru in the name of 1st Plaintiff and constructed a house in the said O.S.No.4019/2008 property and the Plaintiffs were residing in the said house and due to their illegal relationship, Plaintiff Nos.2 and 3 and other two children were born to late Muniyappa Reddy and 1st Plaintiff. But, his father late Muniyappa Reddy had not married the 1st Plaintiff and she is not the legally wedded wife of late Muniyappa Reddy. Therefore, Plaintiff Nos.2 and 3 are not legitimate children of late Muniyappa Reddy.

It is further contended that the documents referred at para 6 of the plaint evidencing the relationship of Plaintiffs with late Muniyappa Reddy, are got created by the Plaintiffs for the purpose of filing of this suit. The Defendant No.4 never managed the family properties and 5th Defendant has not gifted any property in his favour. He has not created any Gift Deed. The suit schedule properties are not the joint family properties of Plaintiffs and Defendants, and Plaintiffs are not in joint possession of the suit schedule properties. The Plaintiffs have no right over the suit schedule properties.

O.S.No.4019/2008 It is further contended that the Plaintiffs never approached him and requested for partition of the schedule properties and he never made any promise or ill-advised the Plaintiffs at any point of time. He never acted as kartha of the joint family. The Defendant No.4 was managing the affairs of the family properties. The Plaintiffs have no right or share in the suit schedule properties. The suit is not properly valued.

It is further contended by Defendant No.1 that in view of relationship of his father late Muniyappa Reddy with 1st Plaintiff, Plaintiffs No.2 and 3 are born and his father late Muniyappa Reddy had purchased item No.1 of the suit schedule properties to provide shelter to the Plaintiffs. During the life time of his father, he told Defendants No.1 to 4 not to claim item No.1 of the suit schedule properties where the Plaintiffs were residing and it should be left for their livelihood and also Plaintiffs shall not claim any other family properties. After death of his father, Defendant No.4 was managing the affairs of the Defendants' family and he told this Defendant that O.S.No.4019/2008 there is little dispute with B.D.A. in respect of item No.1 of the suit schedule properties and after clearing the dispute, said property will be given to the Plaintiffs. Thereafter, Defendant No.4 got registered the Partition Deeds between the Defendants, and this Defendant has put signature on the Partition Deeds. This Defendant was not allowed to go through the contents of said Partition Deeds and he came to know about filing of this suit very recently and then only he came to know that Defendant No.4 got executed Gift Deed in his favour from Defendant No.5 in respect of item No.1 of the suit schedule properties, where the Plaintiffs were residing during the life time of his father. Therefore, the Plaintiffs are entitled to a share in the item No.1 of the suit schedule properties only, and they have no right in other family properties. After perusing the documents produced by Defendant No.4, this Defendant came to know that without his consent, the Defendant No.4 represented this Defendant to the registered Partition Deed Dt.31.3.2004 executed between Defendant No.4 and some of the other O.S.No.4019/2008 Defendants and thereafter by misrepresenting and misleading this Defendant, the 4th Defendant got registered the Partition Deed Dt.4.2.2005 and he got all the immovable properties as his share by settling only meager amount to this Defendant as his share and there is no equal partition. Therefore, the registered

Partition Deed Dt.4.2.2005 is not valid and not binding on this Defendant. Except the above said contentions, rest of the plaint averments are denied by the 1 st Defendant and he prayed for dismissal of the suit.

4. The Defendants No.4 to 6 have filed separate written statement by contending that the 1 st Plaintiff has added the initial 'Y' to her name with the ulterior purposes and motive. The initial of the 5 th Defendant 'Y' has not been mentioned by the Plaintiffs with ulterior motive. There is no son of the 5 th Defendant by name Yuthendra Kumar described as 7th Defendant. The Defendant No.1 is not residing with the other Defendants and he is not residing in Jayanagar. He had left the family house long back and he had been residing O.S.No.4019/2008 separately since several years. The Defendants 2,3,8 and 9 are married daughters and are living in their respective matrimonial homes and not with the Defendants 4 and 5. The Defendant No.4 is residing separately from other Defendants after the partition in the family. The Defendant Nos.5, 6, and another son of Defendant No.5 are residing jointly at No.22, 2nd 'B' main road, 6th block, Jayanagar, Bengaluru. The others do not reside in that address. The Plaintiffs have purposely given the wrong address of the parties with ulterior motive to make a false claim. There is no joint family property existing among the Defendants No.1 to 9 at present and they have all partitioned the joint family properties and there is no joint family property or any property left behind by late Muniyappa Reddy remains to be partitioned.

It is denied that the 1st Plaintiff is the wife and Plaintiffs No.2 and 3 are the children of late Muniyappa Reddy through the 1st Plaintiff. The genealogical tree furnished by the Plaintiffs and the relationship claimed by the Plaintiffs are denied. These Defendants are O.S.No.4019/2008 furnishing the correct genealogical tree of late Muniyappa Reddy for reference in this case. The first wife of late Muniyappa Reddy by name Smt.Pillamma died in the year 1962 and after her death, late Muniyappa Reddy married 5th Defendant-Smt.Y.Jayamma. Late Muniyappa Reddy had no other wife. The claim of the Plaintiffs that the 1st Plaintiff is the second wife of late Muniyappa Reddy is false. Late Muniyappa Reddy got three sons and two daughters through his first wife Pillamma who are Defendants 1 to 4 and there was another son by name Rama Reddy who died unmarried. Late Muniyappa Reddy got two sons and two daughters through his second wife who is 5th Defendant and the said children are Defendants 6,8 and 9 and the other son's name is Veerendra Kumar and not Yuthendra Kumar as described as 7th Defendant in the plaint.

It is further contended that late Muniyappa Reddy died in the year 1976. Subsequently, his second wife who is Defendant No.5 and his sons and daughters have partitioned all the joint family properties and O.S.No.4019/2008 subsequently confirmed the same by registered deeds. The 5th Defendant and her children took their shares as confirmed by registered Partition Deed Dt.31.3.2004. The 1st Defendant took his share as confirmed by registered Partition Deed Dt.4.2.2005. The 2 nd Defendant released her right and subsequently, confirmed the same by registered Release Deed Dt.5.12.2007. The 3 rd Defendant had given up her right in the joint family properties long back. There are no joint family properties left behind for partition. The Defendants have their own properties apart from what they received as their share in the family partition. The suit schedule properties have been wrongly claimed by the Plaintiffs as the properties of late Muniyappa Reddy and as joint family properties of the family with ulterior purposes.

It is further contended that the Plaintiffs have filed this vexatious suit at the instigation of others and there are no bonafides on the part of the Plaintiffs. The alleged claims of the Plaintiffs have been now put forward, though late Muniyappa Reddy died in the year 1976, and O.S.No.4019/2008 no claim has been made earlier. The Plaintiffs never lived with late Muniyappa Reddy at any time. The Plaintiffs appear to have created and concocted documents in their favour to make false claim. The suit is highly belated and barred by limitation. The Plaintiffs never lived either with late Muniyappa Reddy or with the Defendants and the Plaintiffs were not in possession of the suit schedule properties as claimed by them at any time. Even now, the Plaintiffs are not in possession of suit schedule properties. Several documents have been executed between the parties and registered in the concerned Sub- Registrar's office and the parties have been enjoying the suit schedule properties in their own right without any objection or claim by the Plaintiffs. The claim of the Plaintiffs have been denied prior to filing of the suit. The Plaintiffs have not sought for declaration of their alleged rights and not sought for cancellation of the registered deeds entered into in relation to the suit schedule properties.

O.S.No.4019/2008 It is further contended that the property bearing No.243, earlier No.47/6 belonged to the 5 th Defendant. The same has been purchased by her under Sale Deed Dt.8.3.1966 and she has gifted the same in favour of Defendant No.4 under registered Gift Deed Dt.22.11.2001. The property bearing No.240, earlier part of No.47, was in the name of Smt.M.Jayamma, the 2 nd Defendant and the same has been purchased by her under Sale Deed Dt.19.2.1966. In turn she had sold the same in favour of one Rajan under a registered Sale Deed Dt.18.1.2001. Subsequently, the same has been purchased by Defendant No.4 under the registered Sale Deed Dt.3.10.2003. Thus, the Defendant No.4 is the absolute owner of the said two properties and others have no claim over the same. The Plaintiffs have wrongly described and wrongly claimed the said properties as Item Nos.1 and 2 in the suit. There is no property as described in Item No.3 of the suit schedule with No.31/1(old No.18) situated at Yediyur, measuring 28 acres etc., However, there is a property with No.31/1 O.S.No.4019/2008 situated at Kanakapura road, Jayanagar VII Block, Bengaluru belonging to 4th Defendant and there is an old building situated thereon and the 4th Defendant is in exclusive possession and enjoyment of the same as absolute owner thereof. The measurements, numbers, description and boundaries of the properties described in item Nos.4 and 5 are also incorrect. There is an old house at No.1, 2nd 'B' Main road and the same has gone to the share of Defendant Nos.5 to 9. There is another property with No.1/1 which belongs to the 4th Defendant and he has constructed a small house and residing therein. The land in Sy.No.46/2, Chikkallasandra village, Uttarahalli Hobli, Bengaluru South taluk is the property of Defendants 4 to 9 at present and the same has been allotted to their respective shares. The Defendant No.4 has taken one portion and Defendants No.5 to 9 have jointly taken another portion in the partition. Thus, various suit schedule properties belong to different Defendants, and the Plaintiffs have no claim whatsoever over the same.

O.S.No.4019/2008 It is denied that late Muniyappa Reddy made separate arrangement to the 1st Plaintiff wherein they stayed with late Muniyappa Reddy at Mohammedan Block, Jayanagar, Bengaluru.

It is further contended that the Defendant No.6 is the son and Defendant No.5, who is the second wife of late Muniyappa Reddy. The 5th Defendant who was owner of the property has gifted the

same in favour of Defendant No.4. There is no deceiving of Plaintiffs by Defendants No.5 to 9 as alleged. The 4 th Defendant has not created any Gift Deed as alleged. The original documents relating to his properties are with the Defendant No.4. However, he does not have any document relating to the property of the Plaintiffs. The Plaintiffs ought to have possessed the original title deeds of the properties if they are real owners of any property. The Plaintiffs were never being the members of the Hindu joint family of the Defendants and the Plaintiffs were not in possession of any of the properties as members of the joint family. There is no cause of action for the suit and the alleged cause of O.S.No.4019/2008 action is imaginary and baseless. The Plaintiffs have no claim over the suit schedule properties much less 2/12 th share over the same.

It is also contended that Smt. Jayamma, the first Plaintiff who had no initial 'Y' was a tenant of one shed situated in K.R.Road, Bengaluru, now belonging to the 4 th Defendant. The vacant possession of the premises was required by 4th Defendant and he told the 1st Plaintiff to vacate the premises and accordingly she vacated the same by collecting huge amount from the 4 th Defendant. She is not the wife of late Muniyappa Reddy. The other Defendants do not know the Plaintiffs, and the Plaintiffs are not related to the Defendants. These Defendants learnt that the Plaintiffs belong to a different community and not belonging to the community of the Defendants. After vacating the said shed by collecting huge amount, at the instigation of certain persons, the 1 st Plaintiff has put forward to make false claim against the Defendants and falsely claiming that the 1st Plaintiff is the wife of late Muniyappa Reddy. The Plaintiffs are harassing these O.S.No.4019/2008 Defendants with a view to make wrongful gain. Except the above contentions, rest of the plaint averments are denied by Defendants 4 to 6 and prayed for dismissal of the suit.

5. The Defendants No.4,6 and 7 have also filed additional written statement Dt.1.8.2023 by contending that the Defendant No.1 was served with summons on 5.10.2010 and he was placed exparte on 27.10.2010, and he did not appear before this Court on all these years. It is further contended that there was a partition in the year 2004 among the members of the family of the Defendants. However, the 1st Defendant refused to join in the said partition and he did not take his share. The said Partition Deed Dt.31.3.2004 was registered in the office of the Sub-Registrar and has been acted upon by all the parties. The Defendant No.1 who is the eldest son of late Muniyappa Reddy had subsequently come forward to take his share and after admitting the facts, including about all the properties of the family and the fact as to who are all entitled to the share in the properties, and O.S.No.4019/2008 also admitting the earlier Partition Deed Dt.31.3.2004, the 1st Defendant has taken his share in the family properties and he has taken Rs.40 lakhs as complete and full satisfaction of his share in the family properties and had executed a registered Partition Deed Dt.4.2.2005. The said registered Partition Deed has been accepted by the Defendant No.1 and has been acted upon and no objection regarding the same has been raised by him so far. The 1st Defendant was not in good terms with the father late Muniyappa Reddy and had left the house even prior to his marriage. After marriage he was living with his wife in the house of his in-laws. He had no contact with late Muniyappa Reddy for several years. He again contacted with these Defendants at the time of partition in 2004.

It is further contended that in this case, evidence has been recorded on both the sides and the case has been posted for further cross-examination of DW1 after recalling the said witness as per the

order passed by this Court. At this stage the Defendant No.1 has filed the O.S.No.4019/2008 written statement. The Defendant No.1 is estopped from pleading anything contrary to the statements of facts made in the aforesaid registered Partition Deeds Dt.31.3.2004 and 4.2.2005. Therefore, the 1st Defendant is also estopped from pleading that his father late Muniyappa Reddy had relationship with the 1st Plaintiff, and Plaintiff Nos.2 and 3 are born to late Muniyappa Reddy. The 1st Defendant never questioned the validity of registered Partition Deeds Dt.31.3.2004 and Dt.4.2.2005 executed by him. The Partition Deeds Dt.31.3.2004 and 4.2.2005 have been executed by the parties after going through the contents and the parties have acted upon the same and based on the partition, the parties have altered their positions and dealt with the properties. The Defendant No.1 is estopped from challenging the said Partition Deeds. Hence, they have prayed for dismissal of the suit.

6. The Defendants No.4,6 and 7 have also filed additional written statement on 1.3.2024 by contending that the particulars of the properties mentioned by the O.S.No.4019/2008 Plaintiffs including property number, measurement, location and boundary are incorrect. The suit schedule item Nos.1, 2 and 5 of amended suit schedule are separate properties of Defendant No.4 in which others have no right. The item No.2 of the suit schedule properties with the particulars furnished earlier with different measurements and different boundaries was sold long back. Now, the Plaintiffs have introduced a separate property of Defendant No.4 as item No.2 of suit schedule properties. The Plaintiffs are claiming item No.5 of the suit schedule properties which is belonging to Defendant No.4. The suit of the Plaintiffs is barred by time. The Plaintiffs have no right over any of the suit schedule properties mentioned in the schedule. Hence, prayed for dismissal of the suit.

7. On the basis of the above pleadings, materials and documents, the following Issues are framed:-

1. Whether the plaintiffs prove that the schedule properties are their joint family properties?

O.S.No.4019/2008

2. Whether the plaintiffs prove that they are in joint possession of the schedule properties?

prove that there was already a partition in the family?

4. Whether the valuation of the suit is proper and court fee paid is sufficient?

5. Whether the plaintiffs are entitled for the reliefs claimed?

6. What order or decree?

Addl.Issue framed on 2.1.2015:

1. Whether the Plaintiffs prove that the 1st Plaintiff is the wife of Late M.Muniyappa Reddy?

Addl.Issue framed on 2.8.2023:

1. Whether Defendant No.1 proves that Partition Deeds Dt.31.3.2004 and 4.2.2005 are executed by misrepresentation and there is requirement of re-partition of suit schedule properties except item No.1?

Addl. Issues framed on 5.9.2023:

1. Whether the claim of Defendant No.1 for re-partition is barred by limitation?

O.S.No.4019/2008

2. Whether the claim of Defendant No.1 is maintainable without seeking cancellation of registered Partition Deeds Dt.31.3.2004 and 4.2.2005?

Addl.Issues framed on 11.9.2023:

1. Whether Defendant No.1 proves that Defendant No.4 represented him without his concern and executed registered Partition Deed Dt.4.2.2005?
2. Whether the Plaintiff proves that the said Partition Deed Dt.4.2.2005 is unequal hence not binding on him?
3. Whether Defendant No.1 is entitled for relief of re-partition as sought for?

Recasted additional Issue No.2 Dt.
11.9.2023:

Whether the Defendant No.1 proves that the said Partition Dt.4.2.2005 is unequal, hence not binding on him?

Additional Issue framed on 5.3.2024:

1. Whether the suit of the Plaintiff is barred by limitation?
8. In support of case of the Plaintiffs, the 3 rd Plaintiff got examined himself as PW1. On behalf of the Plaintiffs five witnesses have been examined as PW2 to PW6. On behalf of the Plaintiffs, 34 documents are O.S.No.4019/2008 marked as per Ex.P1 to P34. In support of the case of the Defendants, the Defendant No.4 got examined himself as DW1, the Defendant No.5 got examined herself as DW2 and Defendant No.1 got examined himself as DW5. On behalf of the Defendants, two witnesses have been examined as DW3 and DW4 and on behalf of the Defendants 50 documents are marked as Ex.D1 to D50.

9. Heard arguments on both sides. Perused pleadings, evidence and documents placed on record.

10. My findings to the abovesaid Issues are as follows :-

Issue No.1:	In the Negative
Issue No.2:	In the Negative
Issue No.3:	In the Affirmative
Issue No.4:	In the Affirmative
Issue No.5:	In the Negative
Addl.Issue No.1 dt.2.1.2015:	In the Negative
Addl.Issue No.1 dt.2.8.2023:	In the Negative
Addl. Issue No.1 dt.5.9.2023:	In the Affirmative
Addl. Issue No.2 dt.5.9.2023:	In the Negative

O.S.No.4019/2008

Addl.Issue No.1 dt.11.9.2023:	In the Negative
Recasted additional Issue No.2 Dt.11.9.2023:	In the Negative
Addl.Issue No.3 dt.11.9.2023:	In the Negative

Additional Issue No.1 dt.5.3.2024: In the Affirmative Issue No.6: As per final order for the following :-

REASONS Issue Nos.1,2 and Additional Issue No.1 framed on 2.1.2015 :

11. Since these three Issues are inter-connected with each other, in order to avoid repetition of facts and evidence, they are taken up together for discussion.

12. In order to prove the case of the Plaintiffs, the Plaintiff No.3-Lokesh got examined himself as PW1 and filed his affidavit in lieu of his examination-in-chief, by reiterating the plaint averments. On going through the evidence of PW1 wherein he has stated that Plaintiff No.1 is his mother and Plaintiff No.2 is his elder sister. The Plaintiff No.1-Y.Jayamma died on 25.5.2012. His deceased mother i.e., Plaintiff No.1 is the second wife of late Muniyappa Reddy, and himself and 2 nd Plaintiff are O.S.No.4019/2008 children of deceased Plaintiff No.1 and he is also deposing on

behalf of Plaintiff No.2. His father late Muniyappa Reddy had three wives. Smt.Pillamma is the first wife and Defendants 1 to 4 are the children of said Pillamma. After the death of Pillamma, his father late Muniyappa Reddy married his mother Plaintiff No.1-

Y.Jayamma and thereafter himself and Plaintiff No.2 were born to Plaintiff No.1 through late Muniyappa Reddy. During subsistence of marriage of 1 st Plaintiff- Y.Jayamma, said late Muniyappa Reddy married Defendant No.5 who gave birth to two sons and two daughters who are Defendants No.6 to 9 herein. Subsequently, late Muniyappa Reddy died in the year 1976 leaving behind Plaintiffs and Defendants as his surviving successors. His father late Muniyappa Reddy had acquired huge properties during his life time and he died leaving behind him, the suit schedule item Nos.1 to

6. After marriage, his mother Plaintiff No.1 started living in the house of late Muniyappa Reddy along with his children through his first wife, for a short while, but O.S.No.4019/2008 thereafter, late Muniyappa Reddy made separate arrangement to Plaintiff No.1 and she stayed with late Muniyappa Reddy at Mohammedan block, Jayanagar, Bengaluru. After the birth of Plaintiff No.2, late Muniyappa Reddy got married Defendant No.5.

13. PW1 also stated that his mother Plaintiff No.1 got purchased the property at Shastri Nagar, K.R.Road, Bengaluru in her name, wherein she started living and lateron, late Muniyappa Reddy joined Plaintiff No.1 and then only his mother gave birth to Plaintiff No.2 and one more son who is himself. Late Muniyappa Reddy used to stay in the house of Plaintiff No.1 and also in the house of Defendant No.5. Thereafter, all of them were living as members of joint family and the properties were treated as joint family properties. Taking similarity in the name of his mother and the 5th Defendant, the 4th Defendant created a Gift Deed by impersonation and forgery. The Defendant No.5 had no right or interest in the K.R.Road property. The 4th Defendant had committed the said act in order to cheat the Plaintiffs and to cause wrongful loss O.S.No.4019/2008 to them. The said Gift Deed is not binding on the Plaintiffs. The suit schedule properties are the Hindu undivided joint family properties of Plaintiffs and Defendants, and they are in joint and constructive possession of the suit schedule properties which were held by their father late Muniyappa Reddy.

14. In support of the evidence of PW1, the Plaintiffs have got examined one witness by name Smt.Saraswathi, said to be the younger sister of Plaintiff No.1, as PW2. On going through the evidence of PW2, wherein she has deposed that the deceased Plaintiff No.1 is her elder sister who married to late Muniyappa Reddy and due to their wedlock, two children were born who are Plaintiff Nos.2 and 3 in this case. Said late Muniyappa Reddy got married three wives. The first wife is Smt.Pillamma who died before marriage of her sister, who is 1st Plaintiff. She was having four children i.e., Defendants 1 to 4. During subsistence of marriage of Plaintiff No.1, said late Muniyappa Reddy married to Defendant No.5 and due to their wedlock, four children O.S.No.4019/2008 were born to Defendant No.5 through said late Muniyappa Reddy, who are Defendants 6 to 9 in this case. After the marriage of Plaintiff No.1, they started living in the house of late Muniyappa Reddy along with children of late Muniyappa Reddy through his first wife for some period and lateron, late Muniyappa Reddy made separate arrangement for Plaintiff No.1 at

Mohammedan block, Jayanagar. However, the 1st Plaintiff got purchased a property at K.R.Road, Bengaluru and started living in the said property.

15. Apart from the evidence of PW2, the Plaintiffs No.2 and 3 also got examined another witness by name H.Venkatesh Reddy as PW3. On going through the evidence of PW3, wherein he has stated that late Muniyappa Reddy is his relative. The father of late Muniyappa Reddy and grand father of 4th Defendant namely Veerappa Reddy was husband of his grandfather's sister Smt.Munivenkatamma and therefore, late Muniyappa Reddy is his relative. After the death of his wife Smt.Pillamma who is mother of Defendants 1 to O.S.No.4019/2008 4, said late Muniyappa Reddy got married Plaintiff No.1- Y.Jayamma as his second wife. Thereafter, late Muniyappa Reddy started living with 1st Plaintiff in Sastry Nagar, K.R.road, Bengaluru, wherein Plaintiff Nos.2 and 3 were born. Since the 1st Plaintiff was not belonging to their community, there was no relationship between 1st Plaintiff and children of first wife of late Muniyappa Reddy and other ladies. Therefore, late Muniyappa Reddy got married 5th Defendant who belongs to their community. Thereafter, late Muniyappa Reddy used to live with Defendant No.5 along with children of his first wife at Jayanagar 6th block and also with the Plaintiffs at Sastry Nagar, Bengaluru. He has personally known that the 1st Plaintiff and late Muniyappa Reddy were residing in the house property at K.R.Road Bengaluru as husband and wife along with their children i.e., Plaintiffs No.2 and 3 till the death of late Muniyappa Reddy.

16. It is to be noted that in order to prove their relationship with late Muniyappa Reddy, the Plaintiff Nos.2 and 3 got examined a witness by name O.S.No.4019/2008 Lakshmipathi, the Managing Director of Advanced Genecare, Rajajinagar, Bengaluru and also one witness by name Dr.Vimarsh Raina, Medical Director at Chimera Transplant Research Foundation, New Delhi as PW4 and PW5 respectively. On going through the evidence of PW4- Lakshmipathi, wherein he has deposed that he is Managing Director of Advanced Genecare, Rajajinagar, Bengaluru, which is an authorized sample collection center for DNA Forensics Laboratory Pvt.Ltd., New Delhi. As per the instructions of DNA Forensics Laboratory Pvt.Ltd., New Delhi, he collected swab sample of Mr.M.Lokesh and Mr.Munikrishna Reddy for their DNA test on 3.1.2023 in his lab and accordingly he has sent the said swab sample to DNA Forensic Laboratory Pvt.Ltd., New Delhi in the sample collection kit sent by said laboratory. He has received the DNA test report of Lokesh and Munikrishna Reddy from the said lab in Case Ref:DFL230012 by courier and handed over the same to M.Lokesh(Plaintiff No.3) and Mr.Munikrishna Reddy (Defendant No.1). During the course of examination-in-

O.S.No.4019/2008 chief, PW4 has identified the cover received from New Delhi as per Ex.P22 and also DNA reports marked as Ex.P20 and P21 with respect to Plaintiff No.3 and Defendant No.1.

17. On going through the evidence of PW5, Dr.Vimarsh Raina, wherein he has deposed that he is working as Medical Director at Chimera Transplant Research Foundation, New Delhi. The DNA Forensic Laboratory Pvt.Ltd., New Delhi is an exclusive channel partner of Chimera Transplant Research Foundation, New Delhi. He is working as Medical Director at Chimera Transplant Research Foundation, New Delhi, which is providing DNA relationship, transplant immunology and molecular genetics testing services through its channel partner DNA Forensic Laboratory Pvt.Ltd., New Delhi. The buccal swab samples labeled as M.Lokesh and Munikrishna Reddy were received by

them on 4.1.2023 along with authorisation letters of advocate Mr.Prashant L Kanal and Mr.Nagesh along with copies of Aadhar Card of M.Lokesh and Munikrishna Reddy. He had tested the O.S.No.4019/2008 submitted buccal swab samples of M.Lokesh and Munikrishna Reddy on both STR Analysis and Y-STR Analysis and he has prepared and issued the report on 10.1.2023. As per the STR Analysis and Y-STR Analysis report of M.Lokesh and Munikrishna Reddy, they are half siblings and paternally related to each other. In the examination-in-chief of PW5, his certificate of registration issued by Delhi Medical Council is marked as Ex.P24. He has also produced TRF application form, letter dated 26.12.2022 and letter Dt.29.12.2022 submitted by plaintiff No.3 and Defendant No.1 and their counsels which are marked as Ex.P.25 to 27 respectively. He has also produced Aadhar card of plaintiff No.3 and respectively. The two DNA Reports Dt.10.01.2023 given by him are marked as Ex.P30 & 31 respectively.

18. PW5 further deposed that the first test is Y- STR which inherits from the father. Any male ascendants or descendants of father will have same Y-STR. In the present case both the individual samples are tested at 15 O.S.No.4019/2008 different locations and it is established that both the individuals have common male ancestor. The other report at Ex.P20 is based on Autosomal STR in which logic is the same. It is done on 21 marker STR which determines/adds value to STR. Based on Autosomal STR alone is sufficient to conclude 99.21 % that both the individuals are fathered by same individual. It is beyond doubt that they fathered by same person.

19. Apart from the evidence of abovesaid witnesses, the Plaintiff Nos.2 and 3 got summoned the officials of the Holy Saint School, Bengaluru. The Plaintiffs have examined one witness by name Naveen K.P., the Administrative Officer of the said school as PW6, wherein he has deposed that on 30.1.2024, a resolution was passed by the school authority to represent the Head Master and accordingly, authorisation letter is given to him which is marked as Ex.P32. He has also produced School Admission Register for the period from 1974-75 to 1981-82 marked as Ex.P33. In Ex.P33, admission No.86/77-78 of H.Shyamala and another O.S.No.4019/2008 portion of said admission number is entered in the name of Anasuya, which are marked as Ex.P33(a) and (b) respectively. During the course of examination in chief of PW6, Ex.P19 and 20 were shown to the witness, for which he has stated that the registered document marked as Ex.P20 is not available in the said school records and the same is not issued by Holy Saint High School, Bengaluru. Ex.P19 has been issued by the school authority wherein the father name of Anasuya(Plaintiff No.2) is not mentioned therein.

20. As discussed above as per the version of Plaintiffs, they are the children of late Muniyappa Reddy as Plaintiff No.1 who is the mother of Plaintiff Nos.2 and 3 married to late Muniyappa Reddy as second wife. Said late Muniyappa Reddy married the 1 st Plaintiff after the death of Smt.Pillamma who was first wife of late Muniyappa Reddy. According to the version of Plaintiffs, the Defendant No.5-Y.Jayamma is the third wife of late Muniyappa Reddy and during the subsistence of O.S.No.4019/2008 marriage of Plaintiff No.1 with late Muniyappa Reddy, he got married 5th Defendant as his third wife.

21. In order to prove that the 1st Plaintiff is the second wife of late Muniyappa Reddy, they got examined one Saraswathy who is the younger sister of Plaintiff No.1 and also PW3-Venkatesha

Reddy who is said to be the relative of late Muniyappa Reddy. Pws.2 and 3 have also stated that after the death of first wife Pillamma, late Muniyappa Reddy got married the 1st Plaintiff as his second wife and Defendant No.5 is third wife of late Muniyappa Reddy.

22. On contrary to the evidence of Plaintiffs, the Defendant No.1 got examined himself as DW5. On going through the evidence of DW5/D-1, wherein he has deposed that his father married to Pillamma who had two sons and two daughters i.e., himself and Defendants 2 to

4. After the death of his mother Pillamma, his father late Muniyappa Reddy had an association with Plaintiff No.1 and due to their said association, Plaintiff Nos.2 and 3 were born. Thereafter, his father late Muniyappa Reddy O.S.No.4019/2008 made necessary provisions for residence of second wife Jayamma, who is Defendant No.5 herein and also for residence of Plaintiffs. But his father was looking after the Plaintiffs and other Defendants who were born to Pillamma and children of 5th Defendant. To bring truth before this Court, he has produced Y-STR Analysis Test Report and STR-Analysis Test(Siblings Test) Report to show that Lokesh and Anusuya are the children of late Muniyappa Reddy. The Defendant No.4 was closely associated with late Muniyappa Reddy and he was looking after all the belongings of his father and also suit schedule properties and he was collecting rent on behalf of his father, but he was not paying any amount to him, even though he had a right to get the same.

23. It is to be noted that the Defendant No.4 to disprove the case of the Plaintiffs, he got examined himself as DW1. On going through the evidence of DW1, wherein he has stated that the Defendant No.5 is his step-mother and Defendant Nos.6 and 7 are his younger brothers and he is authorized to swear on their behalf O.S.No.4019/2008 also. The Defendant No.1 is not residing with them and he has left the family house long back and he is residing separately since last several years. There is no joint family property existing among the Defendants No.1 to 9 at present and they have all partitioned the joint family properties under registered document. There is no joint family property or any property left behind by late Muniyappa Reddy. Said late Muniyappa Reddy had first wife by name Smt.Pillamma who died in the year 1962. After the death of Pillamma, his father late Muniyappa Reddy got married Defendant No.5 in this case and except her, late Muniyappa Reddy had no other wife. The Plaintiffs are falsely claiming that the Plaintiff No.1 is second wife of late Muniyappa Reddy. Late Muniyappa Reddy got three sons and two daughters through his first wife Pillamma who are Defendants 1 to 4 and there was another son by name Rama Reddy who died unmarried. Late Muniyappa Reddy had two sons and two daughters through his second wife who is Defendant No.5 in this case and their children are Defendants No.6 to 8 and O.S.No.4019/2008 other son Veerendrakumar, and Yuthendrakumar described as 7th Defendant in this case.

24. DW1 has further deposed that late Muniyappa Reddy died in the year 1976. It is false to say that late Muniyappa Reddy married the 1st Plaintiff and she started living in the house of late Muniyappa Reddy who made separate arrangement to the 1st Plaintiff, and all the Plaintiffs were stayed with late Muniyappa Reddy at Mohammedan block, Jayanagar. His mother Pillamma who was the first wife of late Muniyappa Reddy died and thereafter, his father late Muniyappa Reddy got married Defendant No.5-Y.Jayamma as his second wife. It is absolutely false to say that item No.1 of the suit schedule properties situated at K.R.Road, Bengaluru was purchased by late Muniyappa Reddy in the

name of 1st Plaintiff. On the other hand said property in K.R.Road was purchased by his father late Muniyappa Reddy in the name of his second wife Y.Jayamma who is Defendant No.5 in this case. The Plaintiffs are falsely claiming that the purchaser's name shown in the said Sale Deed refers O.S.No.4019/2008 to the 1st Plaintiff by taking undue advantage of the fact that the name of 1st Plaintiff is Jayamma. The 1st Defendant is making false statement that his father had relationship with the 1st Plaintiff and other Plaintiffs are the children of late Muniyappa Reddy. It is also false to say that after the death of first wife Pillamma, late Muniyappa Reddy developed relationship with the 1st Plaintiff. It is further false to say that though late Muniyappa Reddy has not married the 1st Plaintiff, he had physical relationship with the 1st Plaintiff and out of their said relationship, Plaintiff Nos.2 and 3 and other two children were born.

25. It is to be noted that the Defendant No.5- Y.Jayamma herself got examined as DW2. On going through the evidence of DW2-Y.Jayamma, wherein she has deposed that she is the second wife of late Muniyappa Reddy. After the death of Pillamma, who is the first wife, said late Muniyappa Reddy got married her in the year 1965. After her marriage, they got four children who are Defendants 6 to 9 in this case. The O.S.No.4019/2008 Defendants No.6,7,8 and 9 were born on 22.6.1967, 24.8.1970, 12.12.1968 and 1.3.1972 respectively. After her marriage with late Muniyappa Reddy, they were residing at No.22, New No.189/190/1, 2nd 'B' Main road, 6th block, Jayanagar, Bengaluru till the death of late Muniyappa Reddy. After the death of late Muniyappa Reddy, they continued to reside in the said house. The Plaintiffs are in no way related to her husband late Muniyappa Reddy. Her husband late Muniyappa Reddy never had any relationship either with Plaintiff No.1 or with any other lady except herself(DW2) and his first wife Pillamma. Even late Muniyappa Reddy had not married the 1st Plaintiff and she had no relationship whatsoever with late Muniyappa Reddy and Plaintiff Nos.2 and 3 are not the children of late Muniyappa Reddy. The Plaintiffs never lived with late Muniyappa Reddy and in turn late Muniyappa Reddy never lived with Plaintiffs at any point of time. The Plaintiffs are falsely claiming that they are the wife and children of late Muniyappa Reddy with ulterior purpose and to make false claim over the O.S.No.4019/2008 properties left by late Muniyappa Reddy and against other properties.

26. DW2 has further deposed that the properties situated in K.R.Road bearing No.47/1 and 47/6 had been purchased by her under the registered Sale Deed Dt.19.2.1966 as per Ex.D2. After purchasing the same she was in possession of the said properties. Then she sold the Northern portion of the said property i.e., property bearing No.47/1 to one M.Pundarikaksha Gupta on 26.10.1974 as per Ex.D3. Likewise, Southern portion of the said property i.e., No.47/6 has been gifted by her in favour of Defendant No.4-M.Venkatesha Reddy under registered Gift Deed Dt.22.11.2001 as per Ex.D5. The katha of the said property has been made in the name of Defendant No.4, and accordingly the 4th Defendant is in possession and enjoyment of the said property. The Plaintiff No.1 had not at all purchased the aforesaid property and she was not the owner of the said property at any point of time. The Plaintiffs have wrongly claimed that the name of 1st Plaintiff is Y.Jayamma by O.S.No.4019/2008 adding initial 'Y' to her name to make false claim. Her(DW2) name is Y.Jayamma and the Plaintiffs have misrepresented the Court and played fraud on the Court claiming that the 1st Plaintiff's name is Smt.Y.Jayamma to knock off the property belonging to their family. The Plaintiffs are in no way connected to the family of the Defendants. Her husband late Muniyappa Reddy died on 10.6.1976 and thereafter the 1st Plaintiff along with Plaintiffs No.2 and 3

came to her property at K.R.Road in December, 1976 as tenants. The Plaintiffs have manipulated and fabricated the documents and produced the same before Court by misrepresenting the facts. The 1st Plaintiff was only the tenant of the said premises. Subsequently, the Plaintiffs got vacated the same.

27. The Defendants have examined a witness by name K.Narasimha Murthy as DW3, wherein he has deposed that he is acquainted with late Muniyappa Reddy since his childhood. Late Muniyappa Reddy married Smt.Pillamma and got five children through her. The first wife Smt.Pillamma died in the year 1962 and O.S.No.4019/2008 thereafter in the year 1965, late Muniyappa Reddy married Defendant No.5-Smt.Y.Jayamma as his second wife. One Smt.Jayamma and her two children who are Plaintiff Nos.1 to 3 were residing in a shed as tenants in the property bearing No.47/6 at K.R.Road, belonging to Defendant No.5-Smt.Y.Jayamma. Subsequently, Defendant No.5 had gifted the said property to Defendant No.4-Venkatesh Reddy, and he continued to be the owner of the said property and now a petrol bunk is being run on that property. While Plaintiff Nos.1 to 3 were residing in the said property as tenants, the Defendant No.4 had requested them to vacate the shed and at that time they demanded money for vacating the same to find an alternative house and therefore, there was a meeting regarding the same and after discussion, it was decided that the Plaintiffs have to vacate and deliver the vacant possession of the shed by collecting Rs.3,50,000/- from Defendant No.4. Accordingly, the Plaintiffs got vacated the aforesaid shed on 21.2.2002 and delivered the vacant possession of the said property to the Defendant No.4 O.S.No.4019/2008 after receiving a sum of Rs.3,50,000/- from Smt.Y.Jayamma. In this regard the Plaintiffs had executed a receipt on 21.2.2002. The Defendant No.4 told him that the tenants in K.R.Road property were vacating and asked him to accompany him. Accordingly, he went along with Defendant No.4 to the said property and at that time a receipt was kept ready and there were few other persons present at the spot. The said receipt was read over and the parties accepted the same as correct. The Plaintiff Nos.1 to 3 had collected Rs.3,50,000/- in cash from Defendant No.4 in his presence. Accordingly, the Plaintiffs handed over the keys of the said shed to Defendant No.4 and the 1st Plaintiff put her LTM to the said receipt and her daughter Plaintiff No.2 also signed the said document. Thereafter, two persons who were present also signed the document as witnesses. Then DW3 himself signed as witness.

28. It is to be noted that during the course of examination-in-chief, DW3 identified his signature found on Ex.D14-receipt marked at Ex.D14(a). He also O.S.No.4019/2008 identified the signatures of witnesses by name Manjunath and Narayana marked at Ex.D14(b) and Ex.D14(c) respectively. He also identified the signatures of Plaintiff Nos.2 and 3 found on Ex.D14 marked at Ex.D14(d) and Ex.D14(e) respectively.

29. The Defendants have also examined another witness by name T.Hanumantha Reddy as DW4, wherein he has deposed that Defendants 1 to 9 are his relatives. Late Muniyappa Reddy was having first wife Smt.Pillamma and got four children i.e., Defendants 1 to

4. After the death of Smt.Pillamma, late Muniyappa Reddy married to Defendant No.5-Smt.Y.Jayamma and got children who are Defendants 6 to 9 herein. Except Smt.Pillamma and Defendant No.5, late Muniyappa Reddy did not have any other wife. The Plaintiffs were residing in a

small shed at property bearing No.47/6 at K.R.Road, Bengaluru and they came to reside in the said shed as tenants in the month of December 1976. Late Muniyappa Reddy died in the month of June 1976 and after the death of late Muniyappa Reddy, the Plaintiffs O.S.No.4019/2008 came to the said premises as tenants. The Plaintiffs had vacated the said premises in the year 2002 and that property belongs to Defendant No.4, and in the said property, a petrol bunk is being run by the Defendant No.4 and his wife. The Plaintiffs have no right or claim against late Muniyappa Reddy or the Defendants or against the suit schedule properties.

30. As discussed above, as per the version of Plaintiffs, the 1st Plaintiff is the second wife and Plaintiffs No.2 and 3 are the children of late Muniyappa Reddy. It is an undisputed fact that late Muniyappa Reddy married to Smt.Pillamma who is his first wife. Through said Smt.Pillamma, late Muniyappa Reddy got four children who are Defendants No.1 to 4 herein. The only dispute between the Plaintiffs and Defendants is that who is the second wife of late Muniyappa Reddy after the death of his first wife Smt.Pillamma. According to the version of Plaintiffs, after the death of first wife Smt.Pillamma, late Muniyappa Reddy got married 1st Plaintiff as his second wife. After the marriage, they started living in item No.1 O.S.No.4019/2008 of the suit schedule properties situated at K.R.Road, Bengaluru which was purchased by 1st plaintiff. But as per the version of Defendant No.4, after the death of first wife Smt.Pillamma, late Muniyappa Reddy got married Defendant No.5 as his second wife. Therefore, the Defendant No.5 herself had purchased item No.1 of the suit schedule properties and after purchasing the said property, she had sold half portion of the property in favour of one Pundarikaksha under registered Sale Deed and remaining half portion was gifted by her in favour of Defendant No.4 under registered Gift Deed. Therefore, according to the version of DW1 to DW3, the Defendant No.5/DW2 herself is the second wife of late Muniyappa Reddy whose marriage was taken place after the death of first wife Smt.Pillamma. Even as per the evidence of Defendant No.1 who is examined as DW5, his father late Muniyappa Reddy had married his mother Smt.Pillamma. After the death of his mother Smt.Pillamma, his father fell in association with 1st plaintiff and out of their association, Plaintiff Nos.2 and 3 were born. Even DW5 O.S.No.4019/2008 has also further stated that his father made necessary arrangement for the residence for the 1st Plaintiff at K.R.Road where the Plaintiff Nos.2 and 3 were born.

31. As already discussed above, as per the version of DW1, DW3 and DW4, the 1st plaintiff was inducted in item No.1 of the suit schedule properties situated at K.R.Road as tenant. When the Defendant No.4/DW1 demanded the Plaintiffs to vacate item No.1 of the suit schedule properties and to handover the vacant possession, then 1st plaintiff demanded for money. Therefore, there was negotiation between Defendant No.4/DW1, DW3 and DW4, and they decided to pay a sum of Rs.3,50,000/- for which the Plaintiffs agreed to quit vacate and handover the vacant possession of the item No.1 of the suit schedule properties. Accordingly, Ex.D14-receipt came into existence. DW4 during the course of his examination-in-chief has identified Ex.D14- receipt and also identified his signature, signatures of two witnesses and also signatures of Plaintiff Nos.2 and 3 found on Ex.D14 marked as Ex.D14(a) to (d) respectively.

O.S.No.4019/2008 Therefore, it is forthcoming from the evidence of DW1, DW3 and DW4 that the Plaintiffs came to item No.1 of the suit schedule properties as tenants and subsequently, they quit and handed over the vacant possession of the shed to Defendant No.4 by receiving a sum of

Rs.3,50,000/-, in which the Defendant No.4 is running a petrol bunk. It is to be noted that the Plaintiffs have not seriously disputed the contents of Ex.D14 and also signatures of the Plaintiffs and other witnesses found on Ex.D14. It is only denied by the Plaintiffs stating that the said Ex.D14 is created and concocted by Defendant No.4 for the purpose of this case. Hence, the contents of Ex.D14-receipt remained unchallenged as there is no rebuttal evidence of the Plaintiffs to disprove the same.

32. The Defendant No.5 who got examined herself as DW2 has clearly and specifically stated in her evidence that she is the only second wife of late Muniyappa Reddy who married her after the death of his first wife Smt.Pillamma. She has clearly and unequivocally stated that the Plaintiffs No.1 to 3 had no relationship O.S.No.4019/2008 whatsoever with late Muniyappa Reddy as his wife and children. DW2/Defendant No.5 has also stated in her evidence that herself had purchased item No.1 of the suit schedule properties and other properties bearing No.47/1 and 47/6 under registered Sale Deed Dt.19.2.1966 as per Ex.D2.

33. It is to be noted that as per the version of Plaintiffs, said item No.1 of the suit schedule property was purchased by Plaintiff No.1 herself and the name mentioned in Ex.D2/Ex.P5-Sale Deed as Smt.Y.Jayamma refers to none other than the 1st plaintiff and not the Defendant No.5 herein.

34. On perusal of Ex.D2/Ex.P5, certified copy of the Sale Deed produced by the Defendants as well as the Plaintiffs, wherein it is mentioned that Smt.Y.Jayamma W/o Muniyappa Reddy had purchased item No.1 of the suit schedule properties from K.R.Nagaraj S/o K.Ramaiah Shetty for valuable sale consideration for Rs.1000/- in the year 1966. As per Ex.D3, Smt.Y.Jayamma had sold portion of the said property in O.S.No.4019/2008 favour of Pundarikaksha Gupta. As per Ex.D4, a portion of item No.1 of the suit schedule properties was gifted by 5th Defendant-Smt.Y.Jayamma in favour of Defendant No.4-Venkatesha Reddy.

35. It is to be noted that on going through the cross-examination of PW1-Lokesh/Plaintiff No.3 done by learned counsel for Defendants No.4 to 7, wherein he has clearly admitted as follows:-

«.|.5 zÀÈrùPÀÈvÀ £ÀPÀ®Ä EzÄÄÝ EzÀgÀ C,À®Ä PÀæAiÄÄÝÀvÀæªÀ£ÄÄß £Á£ÄÄ JAZÀÆ £ÉÆÄrgÄÄªÄÄ¢®è. «|.5gÀ°è PÁtô¹zÀªÉÊ.dAiÄÄªÄä 5£ÉYÀæwªÁ¢ DVgÄÄvÁÛgÉ, DzÀgÉ 1£ÉªÁ¢ C®è JAZÀgÉ, ÀjAiÄÄ®è. «|.5gÀ YÀæPÁgÀ CzÀgÀ°è £ªÄÄÆ ¢¹zÀAvÉ, ÀévÀÛ£ÄÄß 5£ÉYÀæwªÁ¢ RjÄ¢ªÀiÁr C£ÄÄª«¹PÉÆAqÄÄ §AzÀgÄÄ CAzÀgÉ, Àj. «|.5gÀ°è £ªÄÄÆ ¢¹zÀ, ÀévÄÄÛ PÉ.Dgï. gÉÆÄr£À°è EgÄÄvÀÛzÉ.

«.|.5gÀ YÀæPÁgÀ 5£ÉYÀæwªÁ¢ JgÀqÄÄ LIAUÄ¼Ä£ÄÄß CAzÀgÉ, ÀªÉð £ÄÄ.42/1ªÄÄvÄÄÛ 47/6£ÄÄß RjÄ¢¹zÁÝgÉ CAzÀgÉ, Àj. ,ÀªÉð £ÄÄ.42/1£ÄÄß YÄÄAqÀ°PÁPÄgÄªjUÉ 5£É YÀæwªÁ¢ ¢B28.4.174gÀ°èªÀiÁjgÄÄvÁÛgÉ CAzÀgÉ £££ÄUÉ UÉÆwÛ®è. ,ÀªÉð £ÄÄ.47/6£ÄÄß «|.6gÀ YÀæPÁgÀ zÁ£ÀªÀiÁrgÄÄvÁÛgÉ CAzÀgÉªd.

36. As per the above said version of PW1 who is Plaintiff No.3 herein, he has clearly and unequivocally O.S.No.4019/2008 admitted that two items of the suit schedule properties i.e., item No.1 had been purchased by Defendant No.5 as per Ex.P5/Ex.D2-Sale Deed i.e., Sy.No.42/1 and 47/6. He has also clearly admitted that by virtue of the purchase made by Defendant No.5, she was in possession and enjoyment of the said property situated at K.R.Road, Bengaluru. Hence, it is clear from the evidence of PW1, DW1 and DW2 that two items of the properties had been purchased by 5th Defendant-Smt.Y.Jayamma. Therefore, the version of PW1 that item No.1 of the suit schedule properties was purchased by Plaintiff No.1 cannot be accepted. Hence, it is clear that the above said two properties including item No.1 of the suit schedule properties had been purchased by Defendant No.5/DW2.

37. So far as the marriage of 1st Plaintiff with late Muniyappa Reddy is concerned, the learned counsel for Defendants No.4 to 7 has also cross-examined PW2 who is none other than the younger sister of PW1. On going through the cross-examination of PW2, wherein she has stated and admitted as follows:-

[illegible]

38. There is clear admission on the part of PW2- Smt.Saraswathi that the 5th Defendant-Smt.Y.Jayamma is only second wife of late Muniyappa Reddy who got married her after the death of his first wife Smt.Pillamma.

39. It is to be noted that in the evidence of PW3, he stated that his grand-father used to tell him that late Muniyappa Reddy got married the 1st Plaintiff after the death of Smt.Pillamma, as his second wife. During the course of his cross-examination done by learned counsel for Defendants, he has stated that he does not know personally in respect of marriage between late Muniyappa Reddy and 1st Plaintiff and he came to know the marriage held between late Muniyappa Reddy and 1 st plaintiff only as per the information given by his grand-father Venkata Reddy. He further stated in his cross-examination that when he was 15 years old, at that time his grand-father O.S.No.4019/2008 informed him about the marriage of late Muniyappa Reddy with 1st plaintiff. Therefore, the version of PW3 clearly goes to show that he has no personal knowledge about the marriage of 1st Plaintiff with late Muniyappa Reddy and only on the say of his grand-father he came to know the said fact. Hence, the evidence of PW3 is not trustworthy in respect of the marriage of 1 st Plaintiff with late Muniyappa Reddy as he has no personal knowledge about the same.

40. As discussed above, in order to prove the relationship of Plaintiffs with late Muniyappa Reddy, the Plaintiffs have produced the DNA test reports of Plaintiff No.3(Lokesh) and Defendant No.1. In order to prove the same, the Plaintiffs also examined PW4, the Managing Director of Advanced Genecare, Rajajinagar, Bengaluru and PW5, Dr.Vimarsh Raina, Medical Director of Chimera Transplant Research Foundation, New Delhi who had conducted DNA examination of swab samples said to have been sent by PW4. According to the version of PW4 he himself had collected swab

sample of Plaintiff No.3 O.S.No.4019/2008 and Defendant No.1 in his lab and sent the same to DNA Forensic Lab, New Delhi. Therefore, he has issued DNA test report of Plaintiff No.3 and Defendant No.1 as per Ex.P20 and P21 respectively. As per the version of PW5, Dr.Vimarsh Raina, who is the Medical Director of Chimera Transplant Research Foundation, New Delhi, he had received the swab samples of Plaintiff No.3 and Defendant No.1 along with authorisation letters from their advocates. Then he had tested the submitted buccal swab sample of said Plaintiff No.3 and Defendant No.1 on both STR Analysis and Y-STR Analysis. Accordingly, he prepared the Report. In his examination-in-chief also he has identified the Reports marked at Ex.P20 and P21 respectively.

41. As already discussed above, the Plaintiffs also got examined officials of Holy Saint High School, Bengaluru by producing the school records of Plaintiff Nos.2 and 3 to prove their relationship with late Muniyappa Reddy. As per the version of PW6, the Administrative Officer of Holy Saint High School, in the O.S.No.4019/2008 admission Register pertaining to 1974-75 to 1981-82 which is marked at Ex.P33, admission No.86/77-78 refers to H. Shyamala and another portion of admission No.86/77-78 is mentioned in the name of Anasuya which are marked as Ex.P33(a) and 33(b). It is to be noted that in his examination-in-chief, he has stated that in the school records, the father's name of Anasuya, the 2nd Plaintiff is not mentioned and the name of her mother is only mentioned.

42. It is to be noted that as per additional Issue No.1 framed by this Court, the burden is on the Plaintiffs to prove that the 1st Plaintiff is the wife of late Muniyappa Reddy. As discussed above as per the version of Plaintiffs after the death of first wife Smt.Pillamma, late Muniyappa Reddy got married the 1st plaintiff as his second wife and subsequently, he got married Defendant No.5-Smt.Y.Jayamma as his third wife. But, the Plaintiffs have not placed any material or sufficient, cogent and convincing evidence to prove that the 1st plaintiff is the wife of late Muniyappa Reddy. It is to be noted that the O.S.No.4019/2008 Defendant No.1 who had undergone DNA examination along with Plaintiff No.3 himself has stated in his written statement as well as in his evidence that after the death of his mother Smt.Pillamma who is first wife of late Muniyappa Reddy, he developed relationship with the 1st plaintiff. Though his father had not married 1st plaintiff, he used to say that he got married the 1st plaintiff and due to their illegal relationship, Plaintiff Nos.2 and 3 and two other children were born to his father late Muniyappa Reddy through the 1st plaintiff. Hence, the evidence of Defendant No.1/ DW5 is very clear that the 1st plaintiff is not the wife of late Muniyappa Reddy as he has not married her. It is pertinent to note that the evidence of Defendant No.5 who is examined as DW2 is very much available on record to prove that she is the second wife of late Muniyappa Reddy who got married her after the death of his first wife Smt.Pillamma. Her evidence is corroborated by the oral evidence of DW1, DW3 and DW5 coupled with documentary evidence as stated supra. As per the general principles of law, the preponderance of O.S.No.4019/2008 probabilities plays an important role in proving the case of both parties herein. In this case it is established by the Defendants that Defendant No.5-Smt.Y.Jayamma is the second wife of late Muniyappa Reddy who got married her after the death of his first wife Smt.Pillamma. Though the learned counsel for the Plaintiffs has thoroughly cross-examined Defendant No.5/DW2, nothing has been elicited from her mouth that the 1st plaintiff is the wife of late Muniyappa Reddy. Hence, it is clearly established from the evidence of Defendants i.e., DWs.1 to 5 that after the death of Smt.Pillamma, the first wife, late Muniyappa Reddy got married Defendant No.5 as his second wife. As per the version of Defendant No.1/DW4, his father got purchased item No.1 of the suit

schedule properties in the name of 1 st plaintiff. Whereas as per the version of DW2/Defendant No.5, the above said two properties including item No.1 of the suit schedule properties had been purchased by Defendant No.5 by herself.

O.S.No.4019/2008

43. It is to be noted that in support of the case of Plaintiffs the learned counsel for Plaintiffs has relied upon the decision of Hon'ble Supreme Court of India reported in (1996) 7 SCC 681 between Ranganath Parmeshwar Panditrao Mali and another V/s Eknath Gajanan Kulkarni and another, wherein the Hon'ble Apex Court has held and discussed as follows:-

A. Hindu Law-Marriage-Presumption of - Legitimacy of children- Succession- P and S living together for long years as husband and wife - In such circumstances, even in absence of proof, held, a rebuttable presumption of valid marriage between them would arise - In view of non-rebuttal of the presumption, S held wife of P and their son, held, legal heir of P and entitled to his property-Succession-Hindu Marriage Act, 1955, Ss 5 and 7 - Hindu Succession Act, S.8 - Evidence Act, 1872,S. 114

44. The learned counsel for the Plaintiffs has also relied upon the another decision of our Hon'ble High Court of Karnataka reported in ILR 2000 KAR 3137 between Lakshamma Vs. Kamalamma & another, wherein it is held as follows:-

O.S.No.4019/2008 (A) EVIDENCE ACT 1872(CENTRAL ACT NO.1 OF 1872)
-Section 114 -

PRESUMPTION REGARDING MARRIAGE-

Trial Court rejected the evidence regarding marriage as the date of marriage not proved, marriage invitation card not produced, performance of customary rituals not spoken by the witnesses and in such a case Entries in the death certificate of a woman cannot be of much value. HELD- If a man and woman professing to be husband and wife,cohabited for a long length of time and if the Society has recognised their relationship, a presumption would arise that they are legally wedded wife and husband. The western perception with regard to presumption on the point is not very much different from the perceptions entertained in Indian context by precedent Law laid down by the Supreme Court and the other High Courts."

45. It is pertinent to note that it is clear case of the Plaintiffs that late Muniyappa Reddy was married to the 1st Plaintiff as second wife after the death of his first wife Smt.Pillamma and during the subsistence of the marriage of 1st Plaintiff with Muniyappa Reddy, he got married Defendant No.5-Smt.Y.Jayamma as his third wife. But, it is not the case of the Plaintiffs that the Plaintiff No.1 and late Muniyappa Reddy though they O.S.No.4019/2008 were not married, they were residing together as husband and wife for a long period of time and due to their cohabitation, the Plaintiff Nos.2 and 3 were born. It is pertinent to note that absolutely, I have no dispute with respect to the principles and propositions of law laid down by the Hon'ble Apex Court as well as our Hon'ble High

Court of Karnataka, as relied upon by the learned counsel for the Plaintiffs. But, the facts and circumstances of the above said decisions are not applicable to the facts and circumstance of the case on hand.

46. On the other hand, the learned counsel for Defendant Nos.4 to 7 has relied upon a decision of Hon'ble Supreme Court of India reported in AIR 2020 SC 541 (From Karnataka) between Rathnamma V/s Sujatamma, wherein the Hon'ble Apex Court has held and discussed as follows:-

O.S.No.4019/2008 (A) Hindu Law-Partition Suit-Claim of share by Plaintiff on basis of her alleged marriage with deceased, son of Defendant-No proof of solemnization of marriage by customary rites and ceremonies as per S.7(2) of Hindu Marriage Act-Failure of Plaintiff to prove marriage disentitles her to claim share in estate of Defendant.

47. I have gone through the above said decision in detail, wherein the Hon'ble Apex Court has clearly held that the burden to prove the marriage is on the Plaintiff with proof of solemnization of marriage by customary rites and ceremonies as provided under Sec.7(2) of Hindu Marriage Act; failure of Plaintiff to prove the marriage disentitles her to claim share in the joint family property. Here in the case on hand, the Plaintiffs have failed to prove the performance of the marriage of 1st Plaintiff with late Muniyappa Reddy by customary rites and ceremonies as provided under the provision of Sec.7(2) of Hindu Marriage Act. Hence, the above said decision of Hon'ble Apex Court relied upon by the counsel for the Defendants No.4 to 7 as stated supra, is aptly applicable to the case on hand.

O.S.No.4019/2008

48. As already discussed above, as per the version of Defendants, the 1st plaintiff was inducted as a tenant in item No.1 of the suit schedule properties and after death of late Muniyappa Reddy, Defendant No.4 demanded them to vacate and handover the vacant possession of the said property, wherein a shed was situated. At that time the Plaintiffs demanded to pay some money and accordingly, it was decided to pay Rs.3,50,000/- to them. After having received the said amount the Plaintiffs got vacated and handed over vacant possession of item No.1 of the suit schedule properties, in which the Defendant No.4 is running a petrol bunk.

49. In order to prove the said fact, the Defendant No.4 has produced Ex.D14, the receipt for having paid a sum of Rs.3,50,000/- to the Plaintiffs. The contents of Ex.D14 clearly establish the fact that the Plaintiffs were inducted in the item No.1 of the suit schedule properties on the basis of oral rental Agreement, and after receiving a sum of Rs.3,50,000/- they had vacated and handed over vacant possession of the said property to Defendant O.S.No.4019/2008 No.4 who is running a petrol bunk in the said property. The contents of Rs.D14-receipt is also proved by examining an independent witness by name K.Narasimha Murthy who is examined as DW3 on behalf of Defendants 4 to 6. He has identified his signature on Ex.D14 and also identified signature of other witnesses and the signatures of Plaintiffs. It is significant to note that Ex.D14 is not at all seriously disputed by the Plaintiffs. Hence, the oral evidence of DW3 coupled with Ex.D14 documentary

evidence, clearly establish the fact that the Plaintiffs were inducted as tenants in item No.1 of the suit schedule properties and thereafter by receiving a sum of Rs.3,50,000/- they had vacated and handed over vacant possession of the property to Defendant No.4. The Plaintiffs have got examined PW4 and PW5 regarding DNA test report to prove the paternity of the Plaintiff No.3 with late Muniyappa Reddy. Since, the Plaintiffs have failed to prove that 1st Plaintiff is the wife of the said late Muniyappa Reddy, the version of Pws.4 and 5 has no evidentiary value as their evidence is not a conclusive O.S.No.4019/2008 proof without supportive evidence. By considering the evidence of all the above said witnesses examined on behalf of Plaintiffs as well as Defendants, material available on record and also for the aforesaid reasons, I am of the opinion that the Plaintiffs have utterly failed to prove that the 1st plaintiff is the wife of late Muniyappa Reddy. The Plaintiffs have also failed to prove that the suit schedule properties are joint family properties of themselves and Defendants and they are in joint possession of the suit schedule properties. In the result I answered Issue No.1, Issue No.2 and Additional Issue No.1 Dt.2.1.2015 in the Negative.

Issue No.3, additional Issue No.1 Dt.2.8.2023, additional Issue No.1, recasted additional Issue No.2 and additional Issue No.3 Dt.11.9.2023 and additional Issue No.2 Dt.05.09.2023:

50. Since these Issue No.3 and additional Issues are inter-connected with each other, in order to avoid repetition of facts and evidence, they are taken up together for discussion.

O.S.No.4019/2008

51. As per the evidence of DW1-Venkatesha Reddy, his father late Muniyappa Reddy died in the year 1976. Subsequently, his second wife who is 5 h Defendant and sons and daughters of late Muniyappa Reddy had got partitioned all the joint family properties and subsequently confirmed the same by registered Partition Deed Dt.31.3.2004. The Defendant No.1 took his share by registered Partition Deed Dt.4.2.2005. The 2 nd Defendant released her right in the family properties and subsequently confirmed the same by registered Release Deed Dt. 5.12.2007. The 3rd Defendant had given up her right in the joint family properties long back. Therefore, there are no joint family properties left behind for partition and they have their own properties apart from all their respective shares what they have received in the family partition.

52. DW1 further deposed that there was a partition in the year 2004 among the members of the family of the Defendants. However, the 1 st Defendant refused to join the said partition and he did not take his O.S.No.4019/2008 share. The said Partition Deed is Dt.31.3.2004 registered in the office of the Sub-Registrar which is already marked as Ex.D8. Therefore, the said Partition Deed has been acted upon by all the parties. The 1 st Defendant who is the eldest son of late Muniyappa Reddy had subsequently come forward to take his share and after admitting the facts, considering all the properties and the market values thereof and the fact as to who are all entitled to the shares in the properties, and also admitting the earlier partition deed Dt.31.3.2004, the 1 st Defendant had taken his share in the family properties and he has taken Rs.40 lakhs as his share as full satisfaction of his share and had executed a registered Partition Deed Dt.4.2.2005. The said registered Partition Deed has been accepted by Defendant No.1 and same has been acted upon and no objection regarding the

same has been raised by Defendant No.1 till filing of his written statement. The Defendant No.1 has not been in good terms with other Defendants and with an ulterior motive, O.S.No.4019/2008 the 1st Defendant has now come forward with the present suit.

53. On the other hand, the 1st Defendant who is examined as DW5 has stated in his evidence that after the death and during the lifetime of his father, there was no partition in respect of suit schedule properties. After death of his father, he was living separately along with his family members, but himself, Plaintiffs and other Defendants are in joint possession of suit schedule properties. The Defendant No.4 without informing him and in association with Defendant No.5 and other family members had effected Partition Deed Dt.31.3.2004 without allotting any share to him. As such the Partition Deed Dt. 31.3.2004 is not binding on him or with regard to his right over the suit schedule properties. When he questioned with Defendant No.4 and other family members about Partition Deed Dt.31.3.2004, the Defendant No.4 by coercion and threat to him effected a document Dt.4.2.2005 wherein he had got obtained his signatures by employing force by himself and also family O.S.No.4019/2008 members and secured necessary signatures before the concerned authorities. Even though there is particular regarding payment to him in the said document, the Defendant No.4 took him to his bank after the encashment of Demand Draft given by him, he made him to withdraw the money and taken away the money which were shown in document Dt.4.2.2005. As such he has prayed for the relief in this regard. Accordingly, he has sought for re-partition of all the suit schedule properties except Item No.1 of the suit schedule properties.

54. It is to be noted that in support of evidence of DW1/Defendant No.4 he has also produced certified copy of registered Partition Deed Dt.31.3.2004 marked as Ex.D8 and also certified copy of registered Partition Deed Dt.4.2.2005 as per Ex.D9, certified copy of Release Deed Dt.5.12.2007 as per Ex.D10 and another certified copy of Release deed Dt.31.7.2004 respectively.

55. On perusal of Ex.D8-Partition Deed Dt.31.3.2004, it reveals that the suit schedule properties have already been partitioned among the Defendant O.S.No.4019/2008 Nos.4 to 9 under the said registered Partition Deed. On perusal of Ex.D10, the registered Release Deed, it reveals that the 2nd Defendant M.Jayamma D/o Muniyappa Reddy had executed the said Release Deed in favour of Defendant No.4-Venkatesha Reddy and relinquished her right over the suit schedule properties.

56. It is significant to note that on perusal of Ex.D9-registered Partition Deed Dt.4.2.2005, it reveals that Defendant No.1-M.Muni Krishna Reddy and Defendant No.4-M.Venkatesha Reddy are parties to the said Partition Deed which is subsequent to the earlier Partition Deed Dt. 31.3.2004 marked as Ex.D8.

57. On careful perusal of Ex.D9-registered Partition Deed entered into between Defendant Nos.1 and 4, wherein it is mentioned that: Muniyappa Reddy, father of both parties to this deed died on 10.6.1976 leaving behind these two parties. M.Munikrishna Reddy, the first party herein was married in the year 1974 during life time of his father and thereafter he left his father's place during the life time of his father and has been residing O.S.No.4019/2008 separately. The marriage of Smt.Y.Jayamma(Defendant No.2) was performed on 27.5.1966 by late Muniyappa Reddy himself. After the death of late Muniyappa Reddy in the year 1976, his son M.Venkatesha Reddy, the second

party herein has been managing the affairs of the family and taking care of the family members and he had performed the marriage of Lakshmikumari (Defendant No.3) on 5.5.1977. There is a recital in Ex.D9 that the parties have divided the joint family properties, and properties described in schedule 'A' have been allotted to the share of Smt.Y.Jayamma W/o late Muniyappa Reddy, M.Srinivasa Reddy, M.Veerendra Reddy and M.Shylaja. All the properties described in schedule 'B' herein have been allotted to the share of second party-M.Venkatesha Reddy subject to Defendant No.4-M.Venkatesha Reddy paying a sum of Rs.40 lakhs to M.Muni Krishna Reddy towards his share in the family properties and a sum of Rs.40 lakhs is described in schedule 'C' herein and the same has been allotted to the share of M.Munikrishna Reddy (Defendant No.1), the first party herein (2) the parties herein covenant O.S.No.4019/2008 and confirm that they have taken the respective properties allotted to them as their shares as aforesaid and the first party confirms having received the sum of Rs.40 lakhs through D.D.Nos.010081, 010082 and 010083 for Rs.9,00,000/- each, D.D.No.010084 for Rs.2 lakhs Dt.3.2.2005 issued by Central Bank of India, Katriguppe branch, Bengaluru and D.D.No.032622 Dt.3.2.2005 for Rs.6,00,000/- issued by the Lakshmi Vilas Bank Ltd., Jayanagar IV Block Branch, Bengaluru and D.D.No.153841 Dt.3.2.2005 for Rs.5,00,000/- issued by Sree Subramanyeswara Co-operative Bank Ltd., V.V.Puram Branch, Bengaluru.

58. As stated supra, as per Ex.D9, registered Partition Deed effected between Defendants No.1 and 4, the Defendant No.1 has received a total sum of Rs.40 lakhs through various Demand Drafts on the same day i.e., on 3.2.2005 towards his share, which is mentioned as 'C' schedule in the Partition Deed marked as Ex.D9. To the said document both Defendants 1 and 4 have signed as first party and second party respectively.

O.S.No.4019/2008 Admittedly, Ex.D8-Partition Deed Dt.31.3.2004 and Ex.D9-Partition Deed Dt.4.2.2005 are registered documents and as per Ex.D8, the earlier partition had already been taken place between the Defendants, except Defendant No.1 and admittedly, as per Ex.D10, Defendant No.2 had relinquished her right of share under Release Deed Dt.5.12.2007 in favour of Defendant No.4- M.Venkatesha Reddy. Even though Defendants No.1 and 4 have effected the partition as per Ex.D9 in which the Defendant No.1 had received a total sum of Rs.40 lakhs towards his share in the joint family properties. The Defendant No.1 has contended that, the Defendant No.4 had forced him to put his signature on Ex.D9-Partition Deed and made him to receive a sum of Rs.40 lakhs, but the said amount of Rs.40 lakhs has not been given by Defendant No.4 to him. Therefore, as per the version of Defendant No.1 he has not at all received the above said amount of Rs.40 lakhs towards his share.

59. It is significant to note that on the above said aspects, the learned counsel for Defendants 4 to 7 has O.S.No.4019/2008 thoroughly cross-examined Defendant No.1/DW5. On going through the cross-examination of DW5, wherein he has clearly admitted and stated as follows:-

—§À4.02.2005 «°—Yf§.>§.9 «°· < □\$` , „' · « □ > §%° > §—“—< ..□ ^°—«< ~«§. ~—«§ □\$` , „—” > §x“—§ 40 —%□# □ff „< > § > § □Y“, °· « %> — , „§—< ^°—«< ~«§ . ~ , %□ □Y° —Y□§—Yf° · « ‡ □ ” □É“ x %< ¿—< ^° —Y □ ° %†É“ □«< > ” > § ~—«§ ‡ □%> —Y %μ§— , „ ” □f »' · < ‡ „ § ‡ □ “ « , □ > § %° · “ · § —“—< ..f< ^° —Y fY > § xY · “ · , «< . f , fY □ ° %†É“ □«< > “ > § „ < ‡ □%° · “ · § —“— f , f ‡

60. As per the version of DW5/ Defendant No.1 on 4.2.2005, the partition had taken place as per Ex.D9 between himself and Defendant No.4 and under the said partition deed, he was paid Rs.40 lakhs through Demand Drafts. But, he has further stated that since Defendant No.4 was in need of money he decided to pay the same and accordingly, he went along with Defendant No.4 and drawn the said amount and gave it to Defendant No.4. He has further stated that he has no any document to show O.S.No.4019/2008 that he had returned back the said amount of Rs.40 lakhs to Defendant No.4 and even he has not issued any notice saying that he neither received property nor received money. Even he has not at all filed any suit against Defendant No.4 with respect to the said amount which alleged to have been repaid to Defendant No.4.

61. As discussed above, under Ex.D9, the partition was effected between Defendants 1 and 4 and a total sum of Rs.40 lakhs has been paid to Defendant No.1 towards his share in respect of joint family properties since he had not participated in the earlier partition as per Ex.D8. The evidence of DW5/Defendant No.1 coupled with documentary evidence clearly establishes the fact that though he had received the total sum of Rs.40 lakhs under Ex.D9 towards his share in the joint family properties, intentionally and deliberately, the Defendant No.1 has stated that though he had received the said amount, subsequently he repaid the said amount to Defendant No.4. Therefore, the contention and version O.S.No.4019/2008 taken by Defendant No.1 that he was not at all paid a sum of Rs.40 lakhs towards his share cannot be believed.

62. The Defendant No.1 has taken up contention in his written statement that the Defendant No.4 without the consent of this Defendant No.1, he represented this Defendant in registered Partition Deed Dt.31.3.2004 executed between Defendant No.4 and some of other Defendants in this suit and thereafter by misrepresenting and misleading to this Defendant, Defendant No.4 got registered the Partition Deed Dt.4.2.2005 and he got all the immovable properties as his share by settling only meager amount to this Defendant towards his share and there is no equitable partition and therefore the registered Partition Deed Dt.4.2.2005 is not valid and not binding on this Defendant. Hence, he sought for the relief of re-partition of the suit schedule properties except suit item No.1.

63. It is significant to note that the Defendant No.1 has taken up the above said contention that the said Partition Deed Dt. 4.2.2005 effected between himself O.S.No.4019/2008 and Defendant No.4 is not binding on him. But, if that is so the Defendant No.1 ought to have sought for the relief of cancellation of said Partition Deed Dt.4.2.2005 effected between himself and Defendant No.4 as per Ex.D9. Without seeking the relief of cancellation of said Partition Deed, the version of Defendant No.1 that the Partition Deed-Ex.D9 is not binding on him, cannot be accepted at all. It is pertinent to note that the Defendant No.1 himself has stated in his written statement that the Defendant No.4 got all the immovable properties as his share by settling only meager amount to this Defendant No.1.

Therefore, it is clear that the Defendant No.1 was paid Rs.40 lakhs under Ex.D9-Partition Deed towards his share. Moreover, the Defendant No.1 has not placed any material or documentary evidence to prove that there is no equitable partition and he was paid only meager amount towards his share. Even there are no sufficient material or documentary evidence produced by Defendant No.1 for re-partition of the suit schedule properties as sought for in his written statement. The O.S.No.4019/2008 Defendant No.1 has not adduced cogent and convincing evidence before the Court to prove the above said fact and contention taken up in his written statement. On the other hand, the Defendant Nos.4 to 6 have proved that there was already a partition amongst the joint family members with respect to the suit schedule properties by adducing and producing the cogent and convincing evidence before the court both oral as well as documentary. In the result I answered Issue No.3 in the affirmative, additional Issue No.1 Dt.2.8.2023 and additional Issue No.1, recasted additional Issue No.2 and additional Issue No.3 Dt.11.9.2023 and additional Issue No.2 Dt.05.09.2023 are in the Negative.

Additional Issue No.1 Dt.5.9.2023 and additional Issue No.1 Dt. 5.3.2024

64. Since these two additional Issues are inter- connected with each other, in order to avoid repetition of facts and evidence, they are taken up together for discussion.

O.S.No.4019/2008

65. So far as additional Issue No.1 Dt.5.9.2023 is concerned, the Defendant Nos.4 to 7 have taken up contention in the written statement that the relief claimed by the Defendant No.1 for reopening of partition is barred by limitation. It is undisputed fact that late Muniyappa Reddy died in the year 1976. After his death, the Defendants 3 to 9 had got partitioned all the joint family properties under Ex.D8-registered Partition Deed Dt.31.3.2004. Subsequently, the Defendants 1 and 4 had effected partition under Ex.D9-registered Partition Deed Dt.4.2.2005. After executing the Partition Deed Dt.31.3.2004 i.e., one year after the execution of Ex.D8- Partition Deed effected between Defendants No.3 to 9, Ex.D9-Partition Deed Dt.4.2.2005 came into existence as entered into between Defendant Nos.1 and 4. Admittedly, the Plaintiffs have filed this suit in the year 2008. But, the Defendant No.1 has filed his written statement only on 6.10.2020. After the lapse of nearly about 10-12 years from the date of filing the suit, the Defendant No.1 has filed the written statement seeking the relief of re-

O.S.No.4019/2008 partition. If really he was not paid Rs.40 lakhs towards his share under Ex.D9-registered Partition Deed as alleged by him, he could have filed a suit against Defendant No.4 for cancellation of the said Partition Deed or he ought to have filed a separate suit for re-opening of partition. But Defendant No.1 has not placed any material or not adduced or produced the cogent and convincing evidence before the court both oral as well as documentary for seeking the relief of re-partition with respect to the suit schedule properties. Hence I am of the opinion that the claim made by the Defendant No.1 for re-opening of partition is hopelessly barred by limitation.

66. So far as additional Issue No.1 Dt.5.3.2024 is concerned the Defendant Nos.4 to 7 have also taken up a contention in their additional written statement that the suit of the plaintiffs is barred by limitation. Admittedly, the Plaintiffs have filed this suit in the year 2008. But, the Plaintiffs have not

chosen to file the suit seeking the relief of partition even during the life time or immediately after the death of late Muniyappa Reddy. It is an O.S.No.4019/2008 undisputed fact that late Muniyappa Reddy died in the year 1976. But, the Plaintiffs have filed this suit seeking the relief of partition after lapse of more than thirty years, which is hopelessly barred by law of limitation. It is significant to note that even during the time of earlier partition effected between Defendants 3 to 9 under Ex.D8, the Plaintiffs have not raised any question. Now they have come up with the present suit claiming partition of the suit schedule properties. Hence, I am of the opinion that the suit of the Plaintiffs and the relief sought for by the Defendant No.1 for re-opening of partition are barred by limitation. In the result I answer additional Issue No.1 Dt. 5.9.2023 and additional Issue No.1 Dt. 5.3.2024 are in the negative.

Issue No.4:

67. This Issue is in respect of Court Fee. However the Plaintiffs have paid sufficient Court fee. Hence Issue No.4 is answered in the affirmative.

O.S.No.4019/2008 Issue No.5:

68. In view of my findings on all the above said Issues and additional Issues as stated supra, the Plaintiffs are not entitled for the reliefs sought for in the plaint. Hence, Issue No.5 is answered in the Negative.

Issue No.6:

69. For the reasons stated in all the above said Issues and additional Issues and findings given on them, I proceed to pass the following:-

ORDER Suit of the Plaintiffs is hereby dismissed.

Both parties shall bear their own costs.

(Dictated to the Stenographer Grade-I, typed by her, corrected, signed and then pronounced by me in the open Court on this the 24th day of April 2024) Digitally signed by (SHIVAKUMARA B) SHIVAKUMAR SHIVAKUMAR BHYRAPPA XXXVIII Addl. City Civil & Sessions Judge, BHYRAPPA Date:

2024.05.08
10:54:26
+0530

Bangalore City.

ANNEXURE

1. List of witnesses examined for plaintiffs:

PW1

Lokesh

O.S.No.4019/2008

PW2	Saraswathi
PW3	Venkatesha Reddy
PW4	Lakshmipathy
PW5	Dr.Vimarsha Raina
PW6	Naveen K.P.

2. List of documents exhibited for plaintiffs :

Ex.P1	Family Tree
Ex.P2	Death certificate of Muniyapa reddy
Ex.P3	Death certificate of Y. Jayamma
Ex.P4	Transfer certificate of M. Lokesh
Ex.P5	Certified copy of Sale Deed dated19.2.1966
Ex.P6	Certified copy of Gift deed dated 22.11.2001
Ex.P7	Voter ID of Anasuya
Ex.P8	Voter ID of Jayamma
Ex.P9	Voter ID of Lokesh
Ex.P10	Ration Card
Ex.P11 to 13	Khatha certificates
Ex.P14	RTC in respect of Sy No. 46/2 for the year 2015- 16 (2sheets)
Ex.P15	RTC in respect of Sy. No. 46/2 for the year 2014- 15 (4sheets)
Ex.P16	RTC in respect of Sy. No. 46/2 for the year 2013- 14 (2sheets)

O.S.No.4019/2008

Ex.P17	Certified copy of Admission Register
Ex.P18	Study certificate issued by NSVK,Kannada Primary school
Ex.P19	Transfer Certificate issued by Holy Saint High School
Ex.P20	DNA Test Report given on

- Buccal Swab samples labeled
as Muniyappa Reddy and
M.Lokesh
- Ex.P21 DNA Test Report given on
Buccal Swab samples labeled
as Muniyappa Reddy and
M.Lokesh
- Ex.P22 Courier cover in which
Ex.P20 and 21 were sent
through Blue Dart Courier
- Ex.P23 Attested copy of Adhar
Card
- Ex.P24 Certificate of registration
of PW5 issued by Delhi
Medical Council
- Ex.P25 D.N.A. Test Requisition
Form
- Ex.P26 Requisition given by
advocate to DNA Forensic
laboratory Pvt.Ltd., to do
DNA test of late
Muniyappa Reddy
- Ex.P27 Requisition given by
advocate to DNA Forensic
laboratory Pvt.Ltd., to do
DNA test of M.Lokesh
- Ex.P28 Copy of Aadhar card of
M.Lokesh
- Ex.P29 Copy of Aadhar card of
Munikrishna Reddy
- Ex.P30 DNA Report

O.S.No.4019/2008

- Ex.P31 DNA Report
- Ex.P32 Autorization Resolution
issued by Holy Saint High
School
- Ex.P33 Admission Register of
students studied from 1974-
75 upto 1981-82
- Ex.P33(a) entry of name of H.Shyamala
in No.86/77-78
entry of name of Anasuya
- Ex.P33(b)
- Ex.P34 Katha extract

3. List of witnesses examined for defendants:

- DW1 M.Venkatesh Reddy
DW2 Y.Jayamma

DW3	K.Narasimha Murthy
DW4	T.Hanumantha Reddy
DW5	Muni Krishna Reddy

4. List of documents exhibited for defendants:

Ex.D1	Genealogical Tree.
Ex.D2	Certified copy of the Sale Deed dated 19.2.1966.
Ex.D2a	Typed copy of Ex.D2.
Ex.D3	Certified copy of the Sale Deed dated 28.10.1974.
Ex.D3a	Typed copy of Ex.D3.
Ex.D4	Certified copy of the Registered Gift Deed dated 22.11.2001.
Ex.D5	Certified copy of the registered Sale Deed dated 19.2.1966.

O.S.No.4019/2008

Ex.D5a	Typed copy of Ex.D5.
Ex.D6	Certified copy of the Sale Deed dated 18.1.2001.
Ex.D7	Certified copy of the Sale Deed dated 3.10.2003.
Ex.D8	Certified copy of registered partition deed dated 31.3.2004.
Ex.D9	Certified copy of registered partition deed dated 4.2.2005.
Ex.D10	Certified copy of the release deed dated 5.12.2007.
Ex.D11	Certified copy of the registered lease deed dated 31.7.2004.
Ex.D12 & 13	True copy of the register admission issued by Headmaster Government primary model school. (2)
Ex.D14	Original receipt dated 21.2.2002. (Subject to objection)
Ex.D14a	signature of DW3
Ex.D14b	signature of Manjunath
Ex.D14c	Signature of Narayana
Ex.D14d	Signature of Plaintiff No.2
Ex.D14e	Signature of Plaintiff No.3
Ex.D15	True copy of the register of admission of plaintiff No.3.
Ex.D15a	Relevant portion of Ex.D15 at Sl.No.195.
Ex.D16	True copy of the register of admission of plaintiff No.2.

- Ex.D16a Relevant portion of Ex.D16 at Sl.No.143.
Ex.D17 True copy of the transfer certificate of plaintiff No.2.
Ex.D18 Certified copy of the mortgage deed dated 21.2.2014.
Ex.D19 True copy of the register of admission issued by the

O.S.No.4019/2008

- Ex.D20 Principle Holy Saint High School.
True copy of the transfer certificate issued by Holy Saint High School.

Ex.D21 Original leaving certificate of defendant No.6 issued by Head Master National High school, Bangalore.

Ex.D22 Cumulative record of defendant No.8 Ex.D23 Original SSLC marks Card of defendant No.9.

Ex.D24 Cumulative record of defendant No.7.

- Ex.D25 Postal acknowledgment dated 25.11.1966.
Ex.D26 Demand notice issued by the Telephone department, Bangalore.

Ex.D27 Letter dated 13.12.1970 issued by District Manager, Telephone department.

Ex.D28 The letter dated 10.5.1977 issued by LIC with RPAD cover.

Ex.D29 Postal cover.

- Ex.D30 Postal receipt and acknowledgment.
Ex.D31 Original SBM pass book of defendant No.5.
Ex.D32 Original SBM pass book of defendant No.5.
Ex.D33 Endorsement issued by CITB, dated 8.12.1970.
Ex.D34 Death certificate of

O.S.No.4019/2008

Muniyappareddy.

Ex.D35	Certificate of registration and fitness certificate issued by RT0, Mandya.
Ex.D36	Certified copy of Sale Deed Dt. 28.10.1974
Ex.D37	DNA report Dt.10.1.2023
Ex.D38	DNA report Dt.10.1.2023
Ex.D39	Summons issued by the court
Ex.D39a	Signature of late Muniyappa Reddy
Ex.D40	Certified copy of Sale Deed Dt.15.2.2006
Ex.D41	Certified copy of RTI application
Ex.D42	Counter-foil postal order
Ex.D43	Certified copy of RTI application
Ex.D44	Original counter-foil of postal order bearing No.39F 795593
Ex.D45	Certified copy of RTI application Dt.7.8.2017
Ex.D46	Original counter-foil of postal order bearing No.40F 258378
Ex.D47 to 50	Two legal opinion/2 letters issued by UCO Bank, Banashankari Branch, Bengaluru

XXXVIII Addl. City Civil
& Sessions Judge, Bangalore City.

97

O.S.No.4019/2008

ORDER

Suit of the Plaintiffs is hereby
DISMISSED (vide separate
Judgment).

Both the parties to bear their
own costs.

XXXVIII Addl. City Civil
& Sessions Judge, Bangalore City.